

IN THE SENATE

SENATE BILL NO. 1270, As Amended

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO THE LABELING OF CELL-CULTIVATED ANIMAL PROTEIN PRODUCTS; AMENDING TITLE 37, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 16, TITLE 37, IDAHO CODE, TO DEFINE TERMS, TO PROVIDE FOR LABELING REQUIREMENTS FOR CELL-CULTIVATED ANIMAL PROTEINS, TO PROVIDE FOR REGULATORY OVERSIGHT, AND TO PROVIDE FOR PENALTIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 37, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 16, Title 37, Idaho Code, and to read as follows:

CHAPTER 16

CELL-CULTIVATED ANIMAL PROTEIN LABELING REQUIREMENTS

37-1601. DEFINITIONS. As used in this chapter, "cell-cultivated animal protein" means any animal cell-based food product produced or derived from culturing animal cells outside of the animal's body, which may be referred to as "lab-grown meat," "cultivated meat," "cell-cultured meat," or "fake meat."

37-1602. LABELING REQUIREMENTS FOR CELL-CULTIVATED ANIMAL PROTEINS. (1) Any cell-cultivated animal protein product sold, distributed, or offered for sale within the state of Idaho shall include labeling with the phrase "lab-grown," "cell-cultivated," or "cell-cultured."

(2) The labeling shall:

(a) Appear on the principal display panel of the packaging; and

(b) Use a font size and style that ensures legibility to an average consumer and is at least equal in prominence to the product name.

(3) Restaurants or other vendors that offer for sale cell-cultivated animal proteins shall provide labeling on menus or equivalent notifications consistent with this section.

(4) A cell-cultivated animal protein product that is not derived from traditional livestock production or wild game harvest shall not be labeled, advertised, or marketed using terms commonly associated with specific meat cuts, including but not limited to "steak," "roast," "tri-tip," "loin," or "brisket," unless otherwise authorized by the United States department of agriculture.

37-1603. REGULATORY OVERSIGHT. The Idaho department of agriculture shall have the authority to:

1 (1) Promulgate rules, subject to legislative approval, to enforce the
2 provisions of this chapter, including additional labeling standards if nec-
3 essary; and

4 (2) Conduct inspections and investigations to ensure compliance.

5 37-1604. PENALTIES. (1) Any person found in violation of this chapter
6 may be subject to a civil penalty by the Idaho department of agriculture of
7 not more than five hundred dollars (\$500) per violation.

8 (2) No civil penalty shall be assessed for a violation that is the re-
9 sult of a good-faith error, provided the violation is promptly corrected
10 upon notice by the department.

11 (3) Enforcement under this section shall be directed to the manufac-
12 turer, producer, or person who labels or markets the cell-cultivated animal
13 protein product, and not to a retailer or food establishment that does not
14 alter the product labeling.

15 (4) Additional penalties for repeat offenses may be established by the
16 Idaho department of agriculture through rulemaking, subject to legislative
17 approval.

18 SECTION 2. An emergency existing therefor, which emergency is hereby
19 declared to exist, this act shall be in full force and effect on and after
20 July 1, 2026.